

# HOUSE . . . . . No. 4611

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, October 20, 2025.

The committee on Public Health, to whom was referred the petition (accompanied by bill, House, No. 2483) of Jay D. Livingstone, Christine P. Barber and others for legislation to increase access to disposable menstrual products, reports recommending that the accompanying bill (House, No. 4611) ought to pass.

For the committee,

MARJORIE C. DECKER.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act to increase access to disposable menstrual products.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 7C of the General Laws is hereby amended by inserting after  
2   section 72, the following section:-

3           Section 73. (a) As used in this section, the following words shall have the following  
4   meanings unless the context clearly requires otherwise:

5           “Disposable menstrual products”, products used by a menstruating individual including,  
6   but not limited to, sanitary napkins, tampons and underwear liners.

7           “Menstruating individual”, a person who menstruates.

8           (b) The Division of Capital Asset Management and Maintenance shall provide, in all real  
9   property owned, rented or otherwise occupied by public agencies of the Commonwealth,  
10   disposable menstrual products at no cost to a menstruating individual. The disposable menstrual  
11   products shall be made available in readily accessible locations, including, but not limited to, in

restrooms for menstruating individuals. and in a manner that does not stigmatize the individual seeking such products.

SECTION 2. Chapter 15A of the General Laws is hereby amended by inserting after section 27, the following section:-

Section 27A. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Disposable menstrual products”, products used by a menstruating individual including, but not limited to, sanitary napkins, tampons and underwear liners.

“Menstruating individual”, a person who menstruates.

(b) Each public institution of higher education shall provide disposable menstrual products at no cost to a menstruating individual. The disposable menstrual products shall be made available in readily accessible locations, including, but not limited to, in restrooms for menstruating individuals, and in a manner that does not stigmatize the individual seeking such products.

SECTION 3. Chapter 23B of the General Laws is hereby amended by adding the following section:-

Section 31. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Disposable menstrual products”, products used by a menstruating individual including, but not limited to, sanitary napkins, tampons and underwear liners.

32 “Menstruating individual”, a person who menstruates.

33 (b) Any provider of temporary housing assistance, including, but not be limited to, a  
34 family shelter, a shelter for adults, a hotel used for emergency shelter, an emergency apartment, a  
35 domestic violence shelter, a runaway and homeless youth shelter or a safe house for refugees,  
36 shall provide disposable menstrual products at no cost to a menstruating individual. The  
37 disposable menstrual products shall be made available in readily accessible locations, including,  
38 but not limited to, in restrooms for menstruating individuals, and in a manner that does not  
39 stigmatize the individual seeking such products.

40 SECTION 4. Chapter 71 of the General Laws is hereby amended by inserting after  
41 section 3 the following section:-

42 Section 3A. (a) As used in this section, the following words shall have the following  
43 meanings unless the context clearly requires otherwise:-

44 “Disposable menstrual products”, products used by a menstruating individual including,  
45 but not limited to, sanitary napkins, tampons and underwear liners.

46 “Menstruating individual”, a person who menstruates.

47 (b) Every primary and secondary school shall provide disposable menstrual products at  
48 no cost to students. The disposable menstrual products shall be available in readily accessible  
49 locations, including, but not limited to, in restrooms for menstruating individuals in a manner  
50 that does not stigmatize the individual seeking such products.

51 SECTION 5. Chapter 127 of the General Laws is hereby amended by adding the  
52 following section:-

Section 170. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Administrator”, the keeper of a lock-up facility under chapter 40, the superintendent of a correctional facility under chapter 125, a sheriff or special sheriff in charge of a jail, house of correction or regional lock-up facility under chapter 126, the colonel of state police and any other official who oversees a facility used for the detention of persons arrested and held in custody or serving a sentence.

“Disposable menstrual products”, products used by a menstruating individual including, but not limited to, sanitary napkins, tampons and underwear liners.

“Menstruating individual”, a person who menstruates.

(b) The administrator shall provide disposable menstrual products to menstruating individuals held or housed in the facility overseen by the administrator at no cost. The disposable menstrual products shall be made available in readily accessible locations, including, but not limited to, in restrooms for menstruating individuals, and in a manner that does not stigmatize the individual seeking such products.